



SERVICE LEVEL AGREEMENT

This Service Level Agreement ("SLA") outlines the performance standards **Sport Alliance LLC.**, 1 Beacon St., MA 20108 ("**Sport Alliance**") commits to providing for the Services rendered under our agreement with you ("**Customer**").

1. PRELIMINARY REMARKS

This Service Level Agreement, hereinafter referred to as the "**SLA**", describes the service qualities ("**Service Level**") owed by Sport Alliance in connection with the provision of the Sport Alliance Software (Solution) to Customer on the basis of the Framework Agreement concluded between Customer and Sport Alliance, hereinafter referred to as the "**Framework Agreement**". The SLA shall not apply to service offerings of companies other than Sport Alliance, in particular if they are connected to the Sport Alliance Software (Solution) via an interface.

Persons other than Customer, hereinafter referred to as "**third parties**", may not derive any claims from this SLA. Third parties within the meaning of the above stipulation are in particular, but not exclusively, the Customer-Studios/Operating Companies that have signed an individual license agreement for the use of the Sport Alliance Software (Solution).

In the event of conflicting provisions, the Agreements in the Framework Agreement shall take precedence over the provisions of this SLA.

Sport Alliance shall establish a support for Customer ("**Global Enterprise Support**") and ensure that the responsible contact persons at Sport Alliance are trained to competently handle problems and concerns of Customer. Global Enterprise Support is provided exclusively for use by Customer, not also for use by third parties (e.g. operators of the Customer-Studios).

Global Enterprise Support is reachable on weekdays (i.e. Monday to Friday, excluding public holidays in Massachusetts) from 08:00 a.m. to 08:00 p.m. EST/EDT by a channel set up specifically for Customer within the Sport Alliance customer ticket system. The use of the ticket system is free of charge for Customer.

Requests (including fault reports) received by Global Enterprise Support from Customer shall be evaluated and processing commenced within business hours in compliance with the response Times specified in Clause 2. If a technical solution to the problem is required, the Global Enterprise Support will hand over the request in the form of an internal ticket to the Sport Alliance development team ("**Technical Support**") including a classification of the urgency according to the priorities named in clause 2 by the Global Enterprise Support.

For the processing of messages that are made via the automatic system monitoring, the Technical Support is on an internal 24/7 on-call standby for all system malfunctions described in Section 3 and responds within the response Times specified in Section 3. Messages in the aforementioned sense are exclusively those that occur via



the automatic system monitoring of the Sport Alliance Software Solution. As a general rule, the Technical Support is not accessible by the Customer.

2. ACCESSIBILITY AND RESPONSE TIMES GLOBAL ENTERPRISE SUPPORT

All requests made by Customer, addressed to Global Enterprise Support, shall be classified by Global Enterprise Support into one of the following categories and handled in order of priority with the corresponding response Times. Requests that, from Customer's perspective, fall into priority 1 below must be made exclusively using the aforementioned ticket system and an identifier defined by the parties.

	Priority 1 (Urgent)	Priority 2 (High)	Priority 3 (Medium)	Priority 4 (Low)
Description	Requests that relate to mission-critical functionality and that threaten to cause more than insignificant harm to the Customer - Studios using the Sport Alliance Software unless immediate action is taken.	Inquiries, regarding malfunctions, which have a direct impact on the daily business of the Customer - Studios using the Sport Alliance Software	Requests that relate to non mission-critical functionality of the Platform with medium to small impact on daily operations, including a need of manual workarounds	Requests for general functionality or configuration details, or requests that address insignificant limitations in the use of the platform
Example	Key APIs not available/degraded resulting in Client's inability to sell memberships (affecting Client's Join Journey) or existing service members (affecting Client's member area or mobile app) Data breach or InfoSec incident affecting the Client's data, service or customers Login system failure across all platforms (web,	Intermittent service issues due to increased latency or error rate Limited issues with some data provisioning via Supplier's APIs affecting Client's web/app Limited number of member area self-service capabilities intermittently degraded Class / facility booking failures or increased	Intermittent issues with non mission critical functionalities - future schedules, payment plans, promo campaigns codes creation, long term reporting Delays in automated member communication Minor issues with data sync between main Web App and mobile app, not preventing app use by the Members	UI elements misalignment, or intermittently displaying errors Member data issue affecting individual members without an apparent pattern Questions about system configuration not answered by the Knowledgebase / Academia / AI assistant materials

	mobile, club interface) for multiple End Users, reasonably believed no to be caused by a localised effect Inability to process ad-hoc payments across any region or payment method attributable to the Solution. (may exclude cyclic membership payments if redundant process is available - i.e Direct Debit) Major data corruption (e.g. missing member records, account duplication, or incorrect payment status affecting >1% of the base) Club access control integration failure across multiple locations (e.g. members unable to enter).	latency for >10% of attempts during peak hours. Payment processing delays with no data loss or rejection. API response latency above 500ms on Tier 1 APIs for >10% of calls within a period of 60 minutes. Mass issues with members access to services caused by inconsistencies in member data for >3% of members, reasonably believed to be caused by an error in the Solution Failure in scheduled reporting affecting financial, revenue, or operational reconciliation lasting longer than 12h. Data sync issues affecting critical business reporting lasting longer than 12h.	Localised login / check-in / club access issues not affecting majority of the locations, believed to be attributable to mistakes in configuration Data corruption caused by user actions, requiring professional assistance	Minor software defects causing delays but not preventing any operations Queries about features not available in the Platform, validation of Customer idea's viability
Response Time / Start of business analysis				
	1 business hour	8 business hours	24 business hours	96 business hours
	Total business hours per business day = 12 between 8am and 8pm			

Response time(s) ("**Response Time**") for requests in the aforementioned sense is the period of time within Business Hours between the receipt of a service request from Customer due to a malfunction that occurred at



the Customer-Studio (within Business Hours) and an initial response (within Business Hours) from Sport Alliance to Customer. The response may be made digitally or by telephone, depending on the urgency.

Start of Problem Analysis ("**Start of Problem Analysis**") is, within Business Hours, the period of time after the Response Time has expired within which Global Enterprise Support, if necessary by involving other specialist departments (e.g. Technical Support), starts problem analysis.

The first response to an incoming request, as well as the start of the problem analysis, does not necessarily lead to the solution of the problem or to a complete response to the request, but can also just be an indication of the start of further work on analysis, research and/or troubleshooting. Further work may therefore extend beyond the Response Times and the start of the problem analysis specified in this SLA.

Customer's claims in the event of violations of the aforementioned Response Times or the start of the problem analysis are governed by Section 6.

3. RESPONSE TIME TECHNICAL SUPPORT

Messages in the sense described below that are sent to Technical Support via automatic system monitoring are handled with the Response Times shown.

	Notifications
Impact on the business	Severe or significant impact on the Customer-Studio
Description	Malfunctions of central infrastructure components leading to a failure of the platform on which the Sport Alliance Software is operated or Failure or impairment of Response Times, also of concurrent components, which lead to significant impairment of the functionalities of the platform on which the Sport Alliance Software is operated.
Response Times after notification through automatic system monitoring	
within business hours	5 min
outside business hours	20 min



Response time(s) ("**Response Time**") in the aforementioned sense means the period between the receipt of the Automatic System Monitoring message by Technical Support and the first response by Technical Support.

The first reaction to an incoming message does not necessarily lead to the solution of the problem, but can also only be the start of work for analysis, research and/or troubleshooting. Corresponding work can therefore extend beyond the aforementioned reaction times.

Sport Alliance informs about messages of the automatic system monitoring to the Technical Support as well as about the status of the processing exclusively via <https://perfectgym-next.status.sportalliance.com/> as communication channel.

Customer's claims in the event of violations of the aforementioned Response Times or the start of the problem analysis are governed by Section 6.

4. MEASURES FOR THE SAFETY OF THE OPERATION OF THE SPORT ALLIANCE SOFTWARE

The technical-organizational measures taken in each case to ensure the security of the Sport Alliance Software and the data processed there can be found at (<https://public.sportalliance.com/pgnext/en/dpa/tom>) and can be downloaded.

4.1 SAFETY

Sport Alliance uses several firewalls to control access to the Sport Alliance Software. Accesses to the Sport Alliance Software by employees and persons authorized by Sport Alliance are reduced to a minimum necessary for operation. In addition, logs exist that are continuously evaluated to detect unauthorized access or anomalies. TLS encryption is always used when transferring data between two systems. At no point is data transmitted between two systems without encryption.

4.2 PROTECTION AGAINST DDOS ATTACKS

DDoS (Distributed Denial of Service) attacks can massively limit the availability of Internet-based services for an indefinite period of time. The platform is designed with increased DDoS resilience and is supported by DDoS prevention systems that can automatically detect and filter excessive traffic.

4.3 MONITORING

Sport Alliance monitors the Sport Alliance Software with a large number of so-called checks, which check the availability of the individual services, the network and all infrastructure components 24 hours a day at intervals



of 60 seconds. In the event of a malfunction, a technician is alerted immediately to initiate troubleshooting measures within the specified Response Times.

4.4 BACKUPS

Sport Alliance uses a continuous and incremental form of data backup of the customer data. In addition, customer data is stored redundantly several times. Further details on this can be found in the technical and organizational measures (TOM), which can be found in the currently valid version at (<https://public.sportalliance.com/pgnext/en/dpa/tom>) and can be downloaded.

5. SYSTEM AVAILABILITY

The operating time is the time from Monday to Sunday from 0:00 am to 12:00 pm EST/EDT, hereinafter the "**Total Period**". Sport Alliance guarantees Customer an availability time of the Sport Alliance Software of 99.95% on a monthly average. The system availability refers exclusively to the core functionalities provided by Sport Alliance (i.e. all services provided by Sport Alliance itself, the failure or malfunction of which entails the impairments described in Section 3 above) as well as to the operation as such. Functionalities provided by companies other than Sport Alliance and connected to the Sport Alliance Software by means of an interface shall only be taken into account in the assessment of system availability to the extent that they lie within the technical area of responsibility of Sport Alliance (i.e. before the relevant transfer point of the interface).

The promise of availability does not include periods of temporary inaccessibility due to routine or necessary maintenance, data backup or update measures, hereinafter collectively referred to as "**Maintenance Work**".

Sport Alliance announces planned maintenance work on the website <https://perfectgym-next.status.sportalliance.com> with a lead time of at least 24 hours. Planned maintenance work will generally take place during off-peak hours (from 10:00 pm - 05:00 am EST/EDT). Maintenance Work will generally only be unscheduled if the risks and/or disadvantages that would arise from or as a result of scheduling the work (e.g. delayed elimination of security vulnerabilities) exceed the resulting benefits for Customer as expected. Downtimes for maintenance work that meet the above criteria are hereinafter referred to as "**Permitted Maintenance Work Times**".

During Maintenance Work, system availability may be limited.

Furthermore, the promise of availability does not cover such downtimes that have their reason in missing technical prerequisites for the access to the Sport Alliance Software Solution to be created by Customer (e.g. downtime of the entire web offering of Customer or of Customer-Studios), which are based on errors in the general telecommunications infrastructure or are the responsibility of the data transmission company or the responsibility of a third-party provider connected to the service (e.g. provider of body analysis devices) or are due to force majeure beyond the control of Sport Alliance, hereinafter "**permitted downtimes**".

6. FAILURE TO MEET SERVICE LEVELS

6.1 MISSING OF RESPONSE TIMES GLOBAL ENTERPRISE SUPPORT (SECTION 2)

If Sport Alliance fails to meet the Response Times regulated in Section 2 and/or the time for starting the problem analysis for reasons for which Sport Alliance is responsible and which lie within Sport Alliance's technical area of responsibility, Customer shall be entitled to demand a flat-rate reduction of the remuneration, for the benefit of the Operation Companies of the affected Customer-Studios for each month in which the aforementioned reasons occur.

Average missed Response Time or problem analysis start in a calendar month is a sum of actual Response Time or start of problem analysis time in minutes of all tickets of said Priority in a calendar month – sum of target time in minutes for all tickets in a calendar month divided by the count of tickets in said period bearing said Priority level.

$$\text{Avg. Missed Response Time} = \frac{\max(0, \sum \text{Actual Time} - \sum \text{Target Time})}{N}$$

Average failure to respond or start problem analysis in a calendar month.	Flat-rate reduction amount for all Customer Studios where the Sport Alliance Software is used operationally
Priority 1 more than 30 minutes in a calendar month	1% of the respective monthly net remuneration in the sense of the Framework Agreement (for each Customer-Studio using the Spot Alliance Software) for each additional full minute, starting with the 30th minute, but not more than 10%.
Priority 2 more than 90 minutes in a calendar month	1% of the respective monthly net remuneration in the sense of the Framework Agreement (for each Customer-Studio operatively using the Sport Alliance Software) per additional full 10 minutes from the 90th minute onwards, but not more than 10%.
Priority 3 more than 720 minutes per calendar month	1% of the respective monthly net remuneration in the sense of the Framework Agreement (for each Customer Studio using the Sport Alliance Software) per additional completed 20 minutes from the 360th minute onwards, but not more than 10%.
Priority 4	not applicable

6.2 FAILURE OF RESPONSE TIMES TECHNICAL SUPPORT (CLAUSE 3)



If Sport Alliance fails to meet the Response Times stipulated in Section 3 for reasons for which Sport Alliance is responsible and which lie within Sport Alliance's technical area of responsibility, Customer shall only be entitled to demand a lump-sum reduction as stipulated in Section 6.3 in the event that an average monthly system availability time of at least 99.95% is not achieved at the same time. If a system availability of at least 99.95% is achieved despite failure to meet the response Times, there shall be no claim against Sport Alliance.

6.3 FAILURE OF SYSTEM AVAILABILITY (CLAUSE 5)

If Sport Alliance fails to achieve a system availability of at least 99.95% for reasons for which Sport Alliance is responsible and which lie within Sport Alliance's technical sphere of control, Customer shall be entitled to demand a lump-sum reduction for the benefit of the Operating Companies of the affected Customer-Studios in the amount described below for each month in which the system availability was not achieved.

Monthly system uptime	Flat reduction amount for all Customer Studios using the Sport Alliance Software operatively
Less than 99.95% up to 99.90	3% of the respective monthly net remuneration in the sense of the Framework Agreement (for each Customer Studio using the Sport Alliance Software operatively)
Less than 99.90%	6% of the respective monthly net remuneration in the sense of Section 3.2 of the Framework Agreement (for each Customer Studio using the Sport Alliance Software operatively)

Calculating system uptime :

$$X\% = \frac{\text{system availability in a calendar month in minutes}}{(\text{Full period} - \text{Permitted Maintenance Work Time} - \text{permitted downtime}) \text{ in the same calendar month, respectively in minutes}} \times 100$$

Sport Alliance provides information on the availability of the Sport Alliance Software solution at <https://perfectgym-next.status.sportalliance.com>.

6.4 TOTAL COMPENSATION

Subject to the remainder of this Section 6.4, the flat-rate reduction amounts set out in Sections 6.1 and 6.3 ("Service Credits") shall constitute Customer's sole and exclusive remedy, and Sport Alliance's entire liability, for any failure to meet the Service Levels described in this SLA. From a system availability of less than 93.0%, for which Sport Alliance is responsible in accordance with the above provision, the reduced value of the service shall be regarded as damage. The reduced value of the service shall be determined as follows: For each full percentage point by which the system availability falls below the value of 100.00%, the reduced value of the service shall

amount to a flat rate of 1.0% of the respective monthly net remuneration owed by the Operating Company in the sense of the Framework Agreement.

The lump-sum reduction amount pursuant to Section 6.3 of this SLA shall be credited against the reduced value of the Service, thus reducing it. ***[Calculation example: In the event of a system availability of 92%, the reduced value of the service shall amount to 8% of the monthly remuneration in the sense of the Framework Agreement less 6% flat-rate reduction amount, so that the remuneration in the sense of the Framework Agreement shall be reduced by a total of 2% as damages and 6% via the flat-rate reduction amount, i.e. by a total of 8%].*** Claims for reduction arising from the warranty in other respects, e.g. as a result of the existence of Software defects, shall also remain unaffected. Customer's right to terminate an existing Framework Agreement for material breach shall also remain unaffected, provided that the conditions for such termination under the Framework Agreement are met.

Neither Party shall be liable to the other under or in connection with this SLA for any indirect or consequential loss, including (without limitation) loss of profit, loss of revenue, loss of anticipated savings, or loss of goodwill, howsoever arising and whether caused by tort (including negligence), breach of contract or otherwise.

6.5 EXPIRATION

The right to demand the reduction amount pursuant to Section 6.1 shall lapse if a report in this regard is either not requested in writing by Customer from Sport Alliance within one month after the end of the relevant calendar month or if it is requested by Customer within the aforementioned period but a claim arising therefrom is not asserted in writing against Sport Alliance within a further week after receipt of the report by Sport Alliance (preclusion period).

The right to demand the reduction amount pursuant to Section 6.3 above and, if applicable, damages within the meaning of Section 6.4 above shall lapse if the claim in this regard is not asserted in writing against Sport Alliance within one month after publication of the required information on status.Sport Alliance.com (preclusion period). Sport Alliance's receipt of Customer's declaration in this regard shall be decisive for compliance with the respective preclusion period.

In the event of timely assertion, Sport Alliance shall issue a credit note for the reduction amount owed by Sport Alliance and, if applicable, the compensation for damages within the meaning of Section 6.4 above and shall pay this to the relevant Operating Company.

7. SEVERABILITY CLAUSE

If individual provisions of this SLA are or become wholly or partially invalid or unenforceable, this shall not affect the validity of the remaining provisions of the respective Agreement. The same shall apply in the event that this SLA contains a loophole. In place of the ineffective or unenforceable provisions or in order to fill the gap, a



provision shall apply which, as far as legally possible, comes as close as possible to what the parties would have intended.